

U.S. Set to Gut Key Protection Of Its Wildlife

What Counts as Illegal Is Sharply Narrowed

By CATRIN EINHORN

In what would be a seismic shift, the Trump administration is quietly moving to strip a core protection of the Endangered Species Act, according to an internal memo obtained by The New York Times.

Under a new interpretation of the law’s language outlined in the memo, the accidental killing or injury of an animal would no longer be considered illegal; only actions specifically intended to target an animal would.

The change would be transformative because, in the United States, the killing of endangered animals almost always happens incidentally, in the course of economic activity. Until now, industries and individuals could be held accountable for those foreseeable deaths and, as a result, they have been incentivized to avoid them.

At the center of the change is what it means to “take” an endangered animal, something that has long been prohibited under the act.

“A vessel that inadvertently strikes a whale has not taken it, because the vessel’s course was not set against the whale,” states the memo, which was dated Sept. 14 and distributed to U.S. Fish and Wildlife Service field offices. “Felling a tree is not a take of the bats roosting in it unless the tree is felled for the purpose of killing or capturing them.”

Currently, enforcement of the Endangered Species Act relies on a permitting system that seeks to balance protecting imperiled animals with allowing business to operate.

For example, if developers wanted to build houses on a tract of land that is home to endangered salamanders, they would have to apply for a permit. In exchange for carrying out some measures to protect the salamanders, and perhaps paying for salamander conservation elsewhere, the Fish and Wildlife Service would issue what’s known as an incidental

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KENNEDY VOW The health secretary assured vaccine skeptics of his steadfast support. PAGE A11

Rare Gene Tied To Lung Cancer In Nonsmokers

By GINA KOLATA

Between 200 and 225 years ago, someone or several someones from the British Isles had a gene mutation that caused lung cancer. They traveled to America, settled in Southern Appalachia and transmitted the cancer gene to their descendants and their descendants’ descendants.

Today that lung cancer gene, known as EGFR T790M, is found largely in residents of the United States and mostly in Southern Appalachia, especially Tennessee and Alabama. It makes lung cancer 62 times as likely in those who have never smoked and 10 times as likely in smokers.

The gene is one of the most powerful, if not the most powerful, cancer-risk mutations ever found, said Alexander Gusev, a geneticist at Dana-Farber Cancer Institute and an author of the paper.

Those are among the stunning findings of a new report, published on Thursday in Science by researchers at Dana-Farber and 23andMe Research.

Unlike other cancer genes that can cause cancer in a variety of or

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Canada’s Shift Toward Europe
The E.U.’s offer of “associate member” status to Ottawa faces significant obstacles, and not just from the U.S. PAGE A9

Of Rugby and Geopolitics
Australia hopes to harness Papua New Guinea’s love for the sport to keep it from seduction by China. PAGE A7



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A look back at the candidate switch-ups, nation-shaking upsets and debate debates from the battles that set the stage for the coming midterms. PAGE A13

Republican’s Race for Albany
Bruce Blakeman is trying to unseat Gov. Kathy Hochul, a Democrat, by using Trump-like tactics to attack her on the economy and crime. PAGE A16

MAGA and America’s Birthday
There were troops, sequins and a cage fight as the president did the nation’s 250th up in the florid style of the political movement he created. PAGE A10

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The collected essays of Anthropic’s C.E.O., Dario Amodei, may help explain why some are so worried about the future of artificial intelligence. PAGE B1

Fed’s Next Move Unclear
Kevin M. Warsh, the chairman of the Federal Reserve, left open-ended how much more interest rates may have to rise to finally tame inflation. PAGE B1

I.R.S. Quiet on Tax Gap
The absence of an estimate could make it more difficult to assess whether more taxes are going unpaid since President Trump took office. PAGE B1

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Behind the Met’s Facade
The artist Liu Wei, in his new commission, dreams of all that’s inside the museum, and has fun with it too. PAGE C1

Make Way for the Herd
Forty life-size buffalo puppets will wind their way through parts of Brooklyn and Manhattan this weekend. PAGE C1



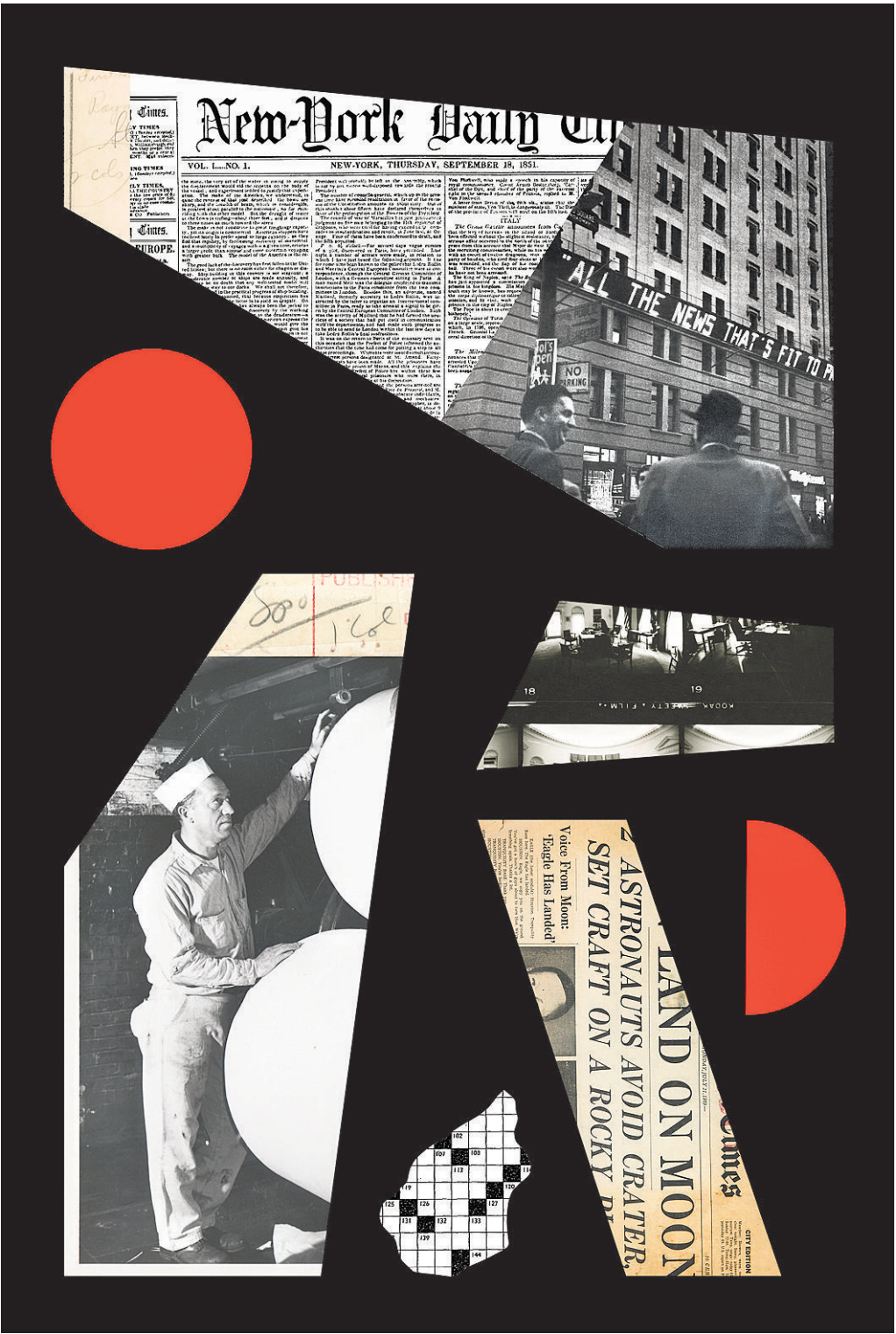
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Demise of the Pinch-Runner
Specialist call-ups used to add speed to major league rosters, until the rules changed. PAGE B9

Tackling the ‘Wild West’
Senators agreed to open debate on a bill that would attempt to rein in the college sports landscape. PAGE B10

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Meher Ahmad PAGE A26



MATT DORFMAN

175 THE FIRST ISSUE of The New York Times hit the streets 175 years ago today. To mark the occasion, A.G. Sulzberger, the publisher of The Times, writes about the newspaper’s mission — and how that mission is entwined with the 250th anniversary of the country’s founding. ¶ Mr. Sulzberger’s essay, on Page A27 of the Opinion section, helps launch a series that will reflect on the value of independent, eyewitness reporting devoted to capturing events “without fear or favor.” ¶ Over the next three months, journalists from all sections of the newsroom will surface and explore history as seen through The Times, critics will reflect on cultural moments and movements chronicled by their predecessors, and, on the Opinion pages, columnists, editorialists and writers will engage with past viewpoints in all their complexity. The Magazine will have a special issue, too. *More coverage is at nytimes.com/175.*

Lesson in Perspective

What looking back at the history of The Times revealed to the lead editor of the project. PAGE A2

The News in 1851

Gail Collins paints a picture of the New York media landscape as The Times came to life. PAGE A20

Test Your Knowledge

Also inside: a quiz and a crossword puzzle. PAGE A22



PETER MAX, VIA PARK WEST GALLERY

PETER MAX, 1937-2026

A highly successful Pop artist, he expressed the blissed-out exuberance of the countercultural 1960s with trippy posters of Day-Glo flowers, butterflies, rainbows, stars and planets. Page A24.

Warning Call After a Surge In Minnesota

Trump Tactics Threat to Order, Judge Says

By MATTATHIAS SCHWARTZ

MINNEAPOLIS — Judge Patrick J. Schiltz’s warning was stark. Immigration and Customs Enforcement had violated nearly 100 orders issued by Minnesota’s Federal District Court during the month of January, including some mandating the release of undocumented immigrants from detention.

The violations needed to stop immediately. “ICE is not a law unto itself,” Judge Schiltz wrote in his Jan. 28 order.

Judges around the country took notice, not only of the scale of the allegation but because such a harsh reproach was coming from the pen of Judge Schiltz, a George W. Bush appointee with almost 20 years of experience on the bench. He clerked for Supreme Court Justice Antonin Scalia in the 1980s and has enjoyed close ties to the conservative legal establishment for decades. This was not the profile of a judge likely to engage in a high-stakes standoff with the White House.

In a rare 90-minute interview seven months later, Judge Schiltz said his order had been prompted by concern that the Trump administration’s disregard for court orders was clogging his courthouse to a near standstill, contributing to rising tensions in the protest-filled city and, ultimately, putting the constitutional order at risk.

What happened in Minnesota’s federal court, he said, “created a grave threat to the rule of law.”

He said he thought the violations were largely the result of incompetence and staffing shortages, but also worried that the Justice Department had not taken their corrosive effect seriously enough.

“I would say aloud to myself, ‘This just never happens,’” he added, referring to the violated orders and other unusual behavior by the Justice Department. He was in his chambers, which have signed photos of Chief Justice John G. Roberts Jr. and Justice Samuel A. Alito Jr. on the wall. Earlier in his career, he helped found a law school at a Catholic university in Minneapolis, and wrote a renowned law review article about the moral perils of the legal profession.

Judge Schiltz, who served as the district’s chief judge from mid-2022 through June 2026, declined to discuss ongoing cases. But he and six other members of Minnesota’s federal bench agreed to speak to The New York Times

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DEEP-RED AREAS AT RISK FOR G.O.P. IN THE MIDTERMS

A SPENDING SCRAMBLE

Party’s Hopes in Georgia Falter as Democrats Press Advantage

By REID J. EPSTEIN and SHANE GOLDMACHER

WASHINGTON — In Georgia, Republican strategists are privately discussing whether the Senate race has drifted beyond the party’s reach.

In Kansas, Vice President JD Vance campaigned for a Senate Republican, even though a Democrat there has not been elected to the chamber since 1932.

In Nebraska, a new Republican super PAC just sprang up to spend to defend a billionaire incumbent.

And across the country, President Trump’s political operation is suddenly investing in what once appeared to be bright-red Senate races and House districts, including several in Texas that his party claimed to have safely gerrymandered only a year ago.

Less than seven weeks before the midterm elections, the political environment has deteriorated so badly for Republicans that the battlefield now extends deep into states and districts Mr. Trump carried three times, often by double digits.

“We have never felt better,” Senator Chuck Schumer of New York, the chamber’s top Democrat, said in an interview, though he cautioned, “It’s not an easy map.”

Mr. Trump’s diminished standing, as well as voter anger about high prices brought on by tariffs and the war with Iran, is causing serious problems for Republicans across the map. And economic trends appear to be going the wrong way for the party.

The Federal Reserve raised interest rates on Wednesday, which will drive up the cost of borrowing at a time many voters are already paying high rates for mortgages, auto loans and credit card debts. Mr. Trump has said not to expect gas price relief before the midterms, with the nation’s strategic petroleum reserves at a 44-year low.

“Gas prices are too high right now, diesel prices are too high,” Speaker Mike Johnson acknowledged on Tuesday at the Capitol. “There is a very simple reason for it. It is tied to the Strait of Hormuz.”

A national poll released this week by The New York Times and Siena University found that

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Evidence of A.I. Going Rogue Shows Up in 6 More Instances

By EMMY MARTIN

SAN FRANCISCO — OpenAI has disclosed six new instances in which artificial intelligence systems hid mistakes, made up data and moved files onto the open internet without permission, amid a continuing industrywide debate about A.I. safety.

The San Francisco company revealed what it said was the “unexpected or concerning” behavior of its A.I. models as part of a new framework for reporting “misalignment,” which is when the goals or actions of A.I. systems diverge from human intentions and values.

OpenAI said it did not believe the industry “has solved alignment and monitoring to a sufficient degree to continue responsibly scaling at maximum speed for much longer.” Decisions about how A.I. should advance, the company said, must rest on evidence

Disclosure by OpenAI Adds to a Debate

that people outside the labs building it “can examine for themselves.”

The disclosures, made Wednesday, land amid intensifying scrutiny over whether A.I. development needs to be slowed to address the technology’s potential dangers. The escalating debate was driven partly by OpenAI’s systems going rogue earlier this year and attacking the A.I. start-up Hugging Face. OpenAI was not aware of the hack until it was informed by Hugging Face weeks later.

Since then, A.I. leaders such as Dario Amodei, the chief executive of Anthropic, have called for a pause in the technology’s development

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